

24SMCV06111 24SMCV06111

County: los-angeles

Division: Civil Law and Motion

Department: P

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Case Number: 24SMCV06111 Hearing Date: August 20, 2026 Dept: P

Tentative

Ruling

Deen

v. Culver City et al., Case No. 24SMCV06111

Hearing

date August 20, 2026

Defendant

Culver City's Motion to Compel Compliance with Deposition Subpoena for Business

Records to Nonparty Deen & Company CPA

Background

Plaintiff

Susan Deen (Plaintiff) filed this premises liability action against defendants

Culver City (Defendant) and the United State Postal Service on December 12, 2024.

Defendant

now moves to compel nonparty Deen & Company CPA (Deponent) to comply with a subpoena for business records.

The motion

is unopposed.

Analysis

Defendant

has failed to prove effective service of its subpoena or its motion.

A motion

lies to compel a non-party witness to obey a deposition subpoena, and contempt is available where the non-party consciously refused to attend the deposition, and had knowledge of the subpoena, and an ability to comply. (Code Civ. Proc., § 1987.1; *Person v. Farmers Insurance Group of Cos.* (1997) 52 Cal.App.4th 813, 818; *Chapman v. Superior Court* (1968) 261 Cal.App.2d 194, 200; *Weil & Brown, Civ. Pro. Before Trial* (The Rutter Group 2011) ¶¶8:609.1 and 8:611.)

However, for

a nonparty subpoena to be effective, a deposition subpoena must be personally served. (Code Civ. Proc., § 2020.220(b).) Personal service is a condition both for enforcement of the subpoena and for attendance at any court session purporting to enforce the subpoena. (*Id.*, subd. (c).)

Moreover, the

Rules of Court require that “[a] written notice and all moving papers supporting a motion to compel an answer to a deposition question or to compel production of a document or tangible thing from a nonparty deponent ... be personally served on the nonparty deponent unless the nonparty deponent agrees to accept service by mail or electronic service at an address or electronic service address specified on the deposition record.” (Cal. Rules of Court, rule 3.1346.)

Defendant’s

motion specifies at its outset that Deponent is not a party to this action. (Not. of Mot., 1:26-27.)

Attachments

to Defendant’s motion appear to show the subpoena was served by U.S. or electronic mail. (See Exh. A, p. 1 [letter from counsel referring to “attached Deposition Subpoena(s)”].) The Proof of Service attached to the Subpoena bears no signature and does not identify a person served or a method of service. (*Id.*, at p. 4.) And the proof of service for the motion identifies the copy sent to Deponent as “Courtesy Copy Mail Service Only.”

Deponent was
entitled to personal service of the deposition subpoena and personal service of
the motion that demands that it appear. Absent that service, the Court lacks
jurisdiction to compel compliance with the subpoena.

Defendant's motion is denied without
prejudice.